

25SMCV06229 25SMCV06229

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-22

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Case Number: 25SMCV06229 Hearing Date: September 22, 2026 Dept: P

Tentative

Ruling

Joseph

W. Sherman v. John Oursland, Case No. 25SMCV06229

Defendant's

Motion to Deem RFAs Admitted

Hearing

Date: September 22, 2026

Background

Plaintiff

Joseph W. Sherman, in pro per, sues Defendants John Oursland, Jefferey Oursland, Kyle Brunick, Jonathon Gerber, Rosa Gutierrez, Dylan Finneran, Savannah Bruto, Gabriel Garcia, and Anthony Marinaccio for tenant harassment. Plaintiff alleges that Defendants harass him at the apartment he leases at 6 Seaview Terrace, Unit I, Santa Monica, CA, 90401.

On December

3, 2025, Plaintiff filed the complaint.

On June

18, 2026, Jeffery Oursland filed this Motion to Deem RFAs admitted. As of September 16, 2026, the Court has not received opposition to this motion.

On July

14, 2026, Jeffery Oursland filed a Motion to Compel Response to Special Interrogatories. That Motion is set for hearing on December 15, 2026.

On July

16, 2026, Jeffery Oursland filed a Motion to Compel Response to Requests for Production. That Motion is set for hearing on October 22, 2026.

Motion

to Deem Requests for Admission, Set One, Admitted

“Any party may obtain discovery . .

. by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250(a).)

If a party

to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Here, Jeffery

Oursland served the Requests for Admission, Set One, on Plaintiff by certified mail on April 9, 2026. (Marinaccio Declaration, Exhibit B.) Jeffery Oursland’s return receipt shows that the RFAs were delivered to his apartment in Santa Monica, CA on April 10, 2026. (Ibid.) Service was complete five days later, on April 15, 2026. As of this motion’s date of filing, Plaintiff has not responded to Jeffery Oursland’s RFAs. (Id. at ¶ 4.) Plaintiff

has not filed opposition indicating that that he has produced responsive discovery since this motion was filed.

The Court

therefore GRANTS Defendants' motion to deem RFAs admitted.

Sanctions

Sanctions

are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court R. 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

Jeffery

Oursland requests attorneys' fees and the \$60.00 filing fee for this motion as sanctions. Jeffery Oursland's counsel bills at a rate of \$415 per hour. (Marinaccio Decl., ¶ 5.) Counsel's rate is reasonable. Jeffery Oursland requests fees for four hours preparing the motion and three hours reviewing opposition, preparing a reply, and attending the hearing on this motion. Jeffery Oursland also requests \$15 for mailing costs, \$30 in other costs, and \$15 in parking costs. Three hours for preparing this motion is reasonable. Because this motion is unopposed, three hours for responding and attending the hearing is excessive; the Court finds one hour reasonable. Jeffery Oursland's mailing and parking costs are reasonable, but the Court declines to grant sanctions for unspecified "other" costs. The Court GRANTS Jeffery Oursland \$1,750 ($\$415 \times 4 + \$60 + \$15 + \15) in sanctions.

Conclusion

Jeffery

Oursland's Motion to Deem RFAs Admitted is GRANTED. Jeffery Oursland is awarded \$1,750 in sanctions.